

SECTION 00 21 00

INSTRUCTIONS TO OFFERORS

1.0 GENERAL REQUIREMENTS

1.1 Intent

This solicitation is to award one (1) construction contract with a base and three (3) options for the Chickamauga Lock Replacement Approach Wall and Decommissioning Project in Chattanooga, Tennessee.

1.2 Project Description

The scope of this Contract will consist of the construction of river and middle approach walls downstream from the lock, connecting the already constructed upstream approach walls to the lock chamber constructed in the Lock Chamber (LC) contract, decommissioning the existing lock, the wet commissioning of the lock chamber constructed in the LC contract, and site restoration activities at the project site. The downstream approach wall will extend under and through the Norfolk Southern Railway Bridge. Two new 30-foot diameter mooring cells will be built downstream of the new lock. Once the existing lock is closed, a portion of the lock chamber and the associated wall culverts will be plugged with concrete. A concrete thrust block will be installed to resist concrete expansion in the dam, and the remaining area will be filled with stone. Miscellaneous equipment and buildings will be removed.

1.3 Disclosure of Magnitude of Construction Project

The estimated magnitude of this requirement is between \$250,000,000 and \$500,000,000.

1.4 Basis for Award

The award will be made to the responsible Offeror whose proposal conforms to the solicitation, is fair and reasonable, and offers the best overall value to the Government with appropriate consideration given to five (5) evaluation factors: Past Performance; Technical Approach; Safety Management; Small Business Participation Plan; and Price.

Factors (I thru IV) are listed in descending order of importance with price being approximately equal to all other factors combined. NOTE: When combined, the non-cost/price factors (Past Performance; Technical Approach; Safety Management; and Small Business Participation Plan) are APPROXIMATELY EQUAL to Price. Factors are illustrated:

Factor I –	Past Performance	1 st
Factor II –	Technical Approach	2 nd
Factor III –	Safety Management	3 rd
Factor IV –	Small Business Participation Plan	4 th
Factor V –	Price	

Offerors are reminded to include their best technical and price terms in their initial offer. In accordance with Federal Acquisition Regulation (FAR) provision 52.217-5, Evaluations of Options, the Government intends to evaluate proposals for award purposes by adding the total price for all of the options to the total price for the basic requirement. Any, some, or all of the options may be exercised at any time but not later than three (3) years from issuance of the Administrative Notice to Proceed (NTP).

In accordance with Defense Federal Acquisition Regulation Supplement (DFARS) 215.306(c)(1), the Contracting Officer should conduct discussions for acquisitions with an estimated value of \$100 million or more. Should discussions take place, the Contracting Officer will establish a common cut-off date for when the Final Proposal Revisions are due. Additionally, any large business Offeror must have an acceptable Small Business Subcontracting Plan to receive an award in accordance with FAR 19.702(a).

Offerors are cautioned that the award may not necessarily be made to the lowest price offered.

1.5 Type of Contract

The Government intends to award one (1) firm fixed-price construction contract with a base and three (3) options.

1.6 Who May Submit

This procurement is unrestricted to obtain full and open competition. Proposals from firms organized as joint ventures (JV) that have associated specifically for this project must include a copy of the legal joint venture agreement in the proposal submission.

1.7 North American Industry Classification System (NAICS) and Small Business Size Standard

The NAICS code for this project is 237990, entitled "Other Heavy and Civil Engineering Construction", which has a Small Business Administration (SBA) size standard of \$45.0 Million.

1.8 Availability of Plans (Drawings), Technical Specifications and Additional Documents

All drawings, technical specifications, and additional documents relating to this Request for Proposal (RFP) are available for download at this solicitation posting on the SAM website, www.SAM.gov. No printed copies of the aforementioned documents will be provided by the Government. Although provided as separate attachments, the following documents are considered an official part of the solicitation. Please see paragraph 1.10 of this section to gain access to the Plans (Drawings), Technical Specifications and additional documents that contain Controlled Unclassified Information (CUI).

The Specifications and Drawings are part of the contract and shall be considered in that respect (see DFARS 252.236-7001, Contract Drawings and Specifications).

1.9 Pre-Proposal Site Visit

An organized Pre-Proposal Meeting and Site Visit has been scheduled to occur during the solicitation period. Offerors should take other steps as may be necessary to ascertain the nature and location of the work and the general and local conditions that can affect the work or the cost thereof. to include, but not limited to, the local labor market and material suppliers. Failure to do so will not relieve Offerors from the responsibility for properly estimating the difficulty or cost of successfully performing the work. The Government assumes no responsibility for any understanding or representations concerning conditions made by any of its officers, agents, or employees, unless included in the solicitation, the specifications or related documents, and any amendments to the solicitation as may be issued.

Please refer to the Federal Acquisition Regulations (FAR) 52.236-27 Alt 1, Site Visit (Construction), incorporated by full text in this solicitation, for information pertaining to the scheduled site visit.

This will be the only Pre-Proposal Meeting and Site Visit for this project. If you miss the scheduled Pre-Proposal Meeting and Site Visit, no other arrangements will be made due to personnel and time restrictions.

1.10 Requirements to Access CUI Documents and/or Attend the Pre-Proposal Meeting / Site Visit

SECURITY REQUIREMENTS: Due to CUI requirements, only persons approved by Nashville District of the U.S. Army Corps of Engineers (LRN) Security Office will be permitted to view CUI documents and attend the Pre-Proposal Meeting and Site Visit.

ACCESS TO CUI DOCUMENTS: Request access via SAM.gov. LRN Point of Contact (POC) will provide further instructions if additional information for access is required.

REGISTRATION FOR PRE-PROPOSAL MEETING AND SITE VISIT: Only registered persons will be permitted to attend the Pre-Proposal Meeting and Site Visit. In addition to the information below, please also provide your firm's name, firm's CAGE and/or Unique Entity Identifier number, and name and position title of primary point-of-contact and their telephone number and email address. **Only four (4) individuals from each business entity will be permitted to attend.**

U.S. CITIZENS: To register, U.S. citizens interested in attending the site visit shall submit a LRN U.S. Citizens Security Access Form to the LRN Point of Contacts (POCs), Contract Specialist Andrew Roth and Contracting Officer Stacy Wiggins, no later than five (5) business days prior to the site visit. If submitting the document in less than five business (5) days prior, the person may not receive approval for participation. Notification of approval or denial will be provided prior to the date of the Pre-Proposal Meeting / Site Visit. The form is available as a pdf attachment on <http://sam.gov> with this solicitation and is titled **U.S. Citizens Security Access Form**.

FOREIGN NATIONALS (FNs): All non-U.S. Citizens, including permanent residents wishing to attend the Pre-Proposal Meeting / Site Visit must be approved in advance. FNs wishing to attend shall submit a completed LRN Foreign National Security Form and legible color copies of two (2) of the following documents: Passport (unexpired or expired), Certificate of U.S. Citizenship (INS Form N-560 04 N-561), Certificate of Naturalization (INS Form N-550 or N-570), unexpired foreign Passport with I-551 stamp or attached INS Form I-94 indicating unexpired employment authorization, an Alien Registration Receipt Card with photo (INS Form I-151 or I-551), unexpired Temporary Resident Card (INS Form I-688), unexpired Employment Authorization Card (INS Form I-688A), unexpired Reentry Permit (INS Form I-327), unexpired Refugee Travel Document (INS Form I-571), or unexpired Employment Authorization Documentation issued by the INS which contains a photograph (INS Form I-688B) to the LRN POCs. These documents must be submitted two (2) weeks prior to the Pre-Proposal Meeting / Site Visit. FN requests require approval at the Headquarters U.S. Army Corps of Engineers (HQ USACE) level. Exceptions will be considered on a case-by-case basis but will be limited. The form is available as a pdf attachment on www.sam.gov with this solicitation and is titled **Foreign National Security Form**.

LRN POCs for Registration: For questions and/or concerns regarding access to CUI documents and/or the Pre-Proposal Meeting and Site Visit, please contact Andrew Roth at Andrew.R.Roth@usace.army.mil. Please submit all request forms to Andrew Roth at Andrew.R.Roth@usace.army.mil and Stacy Wiggins at Stacy.S.Wiggins@usace.army.mil. **When you send your request form, please put "W912P525RA001- (Foreign National or U.S. Citizen) Request Form-(Your Company Name)" in the subject line of the email. Please edit the information in parenthesis to match the request form you submit and your company name.**

1.11 POC for Communication: Any communications regarding this procurement must be made in writing to the Nashville Contracting Branch, Attn: Andrew Roth via email at Andrew.R.Roth@usace.army.mil. Inquiries must identify the solicitation number, the requestor's company name, address, email address, telephone, and facsimile numbers to include area code.

Phone calls or requests to arrange meetings at the Nashville District during the solicitation period to discuss project requirements or company's capabilities are highly discouraged and will not be scheduled.

1.12 Prospective Offerors' Questions and Requests for Information

Prospective Offerors should submit questions concerning this solicitation through the Bidder Inquiry function in ProjNet at <http://www.ProjNet.org/ProjNet>. This is USACE's standard platform for receiving and responding to questions and requests for information. As noted below, Offerors shall not submit their proposals via ProjNet. Offerors shall submit their proposals in accordance with the provisions stated in the solicitation.

To submit and review inquiry items, Offerors will need to be a current registered user or self-register into system. Instructions to gain access are listed below.

Project: Chickamauga Lock Replacement Approach Wall and Decommissioning Project
Solicitation Number: W912P525RA001
The Bidder Inquiry Key: F3739J-VE73JI

Instructions for ProjNet Bidder Inquiry Access:

1. From the ProjNet home page linked above, click on **Quick Add** on the upper right side of the screen.
2. Identify the Agency. This should be marked as **USACE**.
3. Key. Enter the **Bidder Inquiry Key** listed above.
4. Email. Enter the email address you would like to use for communication.
5. Select Continue. A page will then open stating a user account was not found and will ask you to create one using the provided form.
6. Enter your First Name, Last Name, Company, City, State, Phone, Email, Secret Question, Secret Answer, and Time Zone. Make sure to remember your Secret Question and Answer as they will be used from this point on to access the ProjNet system.
7. Select Add User. Once this is completed you are now registered within ProjNet and are currently logged into the system.

Instructions for Future ProjNet Bidder Inquiry Access:

1. For future access to ProjNet, you will not be emailed any type of password. You will utilize your Secret Question and Secret Answer to log in.
2. From the ProjNet home page linked above, click on Quick Add on the upper right side of the screen.
3. Identify the Agency. This should be marked as USACE.
4. Key. Enter the Bidder Inquiry Key listed above.
5. Email. Enter the email address you used to register previously in ProjNet.
6. Select Continue. A page will then open asking you to enter the answer to your Secret Question.
7. Enter your Secret Answer and click Login. Once this is completed you are now logged into the system.

From this page you may view all inquiries or add an inquiry. Offerors will receive an acknowledgement of their question via email, followed by an answer to their question after it has been processed by LRN's Technical Team. Offerors are requested to review the specification in its entirety and to review the "Bidder Inquiry System" for answers to questions prior to submission of a new inquiry. The call center operates weekdays from 8AM to 5PM U.S. Central Time Zone (Chicago). The telephone number for the Call Center is 800-428-HELP.

NOTES:

1. Offerors **shall not** submit their proposals via ProjNet, but in accordance with the provisions stated in the solicitation. Any questions regarding acceptable means of submitting offers shall be made directly to the Contract Specialist identified in the solicitation.
2. Government responses to questions from prospective Offerors concerning the solicitation that are submitted to ProjNet in accordance with the procedures above are not binding on the Government unless an amendment is issued on Standard Form 30. In the case of any conflicts, the solicitation governs. Any changes or revisions to the solicitation will be made by formal amendment. Government responses will be limited to: (a) Notice that an amendment will be issued; (b) Reference to an existing requirement contained in the solicitation; or (c) Notice that a response is not necessary.
3. The ability for prospective Offerors to enter questions in reference to the solicitation will be disabled fifteen **(15) calendar days** prior to the initial closing date stated in the solicitation or date specified in a potential amendment. No Government responses will be entered into the ProjNet system **within ten (10) calendar days** prior to the closing date stated in the solicitation or date specified in a potential amendment.

1.13 Amendments Prior to Date Submission for Request for Proposals (RFP). The right is reserved as the interest of the Government may require, to revise or amend the specifications or drawings or both prior to the date set for submission of proposals. Such revisions and amendments, if any will be announced by an amendment or amendments to this RFP. If the revisions and amendments are of a nature which requires material changes in quantities or prices proposed or both, the date set for receipt of proposals may be postponed by such number of days as in the opinion of the issuing Contracting Officer will enable Offerors to revise their proposal. In such cases, the amendment will include an announcement of the new date for receipt of proposal.

1.14 Notice to Offeror: Use of Class I Ozone-Depleting Substances

a. In accordance with Section 326 of P.L. 102-484, the Government is prohibited from awarding any contract which includes a specification or standard that requires the use of a Class I ozone depleting substance (ODS) identified in Section 601(a) of the Clean Air Act, (42 U.S.C 767a(a)), or that can be met only through the use of such a substance unless such use has been approved, on an individual basis, by a senior acquisitions official who determines that there is no suitable substitute available.

b. To comply with this statute, the Government has conducted a best effort screening of the specifications and standards associated with this acquisition to determine whether they contain any ODS requirements. **This requirement has no relationship to ODSs.**

c. If the Offeror possesses any special knowledge about any other ODSs required directly or indirectly at any level of contract performance, the U.S. Army would appreciate if such information were surfaced to the Contracting Officer for appropriate action. To preclude delay to the procurement, the Offeror should provide any information as soon as possible after release of this RFP and prior to the submission of proposals to the extent practicable. It should be understood that there is no obligation on the Offeror to comply with the request and that no compensation can be provided for doing so.

1.15 NIST SP 800-171 DoD Assessment

In accordance with DFARS 204.7302, Contractors and subcontractors are required to provide adequate security on all covered contractor information systems. Contractors are required to implement National Institute of Standards and Technology (NIST) Special Publication (SP) 800-171 by inclusion of clause at 252.204-7012, Safeguarding Covered Defense Information and Cyber incident Reporting, are required at time of award to have at least a Basic NIST SP 800-171 DoD Assessment that is current (i.e., not more than 3 years old unless a lesser time is specified in the solicitation).

Supplier Performance Risk System (SPRS) provides storage and access to the NIST SP 800-171 assessment scoring information. To access the NIST SP 800-171 Assessments module, users must be registered in the Procurement Integrated Enterprise Environment (PIEE) <https://piee.eb.mil/> and be approved for access to SPRS.

The NIST SP 800-171 DoD Assessment Methodology is located at:
<https://www.acq.osd.mil/asda/dpc/cp/cyber/safeguarding.html#nistSP800171>

2.0 BONDS AND INSURANCE

2.1 BID GUARANTEE. All Offerors shall furnish a bid guarantee. In accordance with FAR 52.228-1, Bid Guarantee, the bidder (or Offeror for this solicitation) shall furnish a bid guarantee in the form of a firm commitment, e.g., bid bond (use Standard Form 24) supported by good and sufficient surety or sureties acceptable to the Government, postal money order, certified check, cashier's check, irrevocable letter of credit, or, under Treasury Department regulations, certain bonds or notes of the United States. The bid guarantee amount shall be at least 20 percent of the bid price but shall not exceed \$3,000,000.00. If using a Bid Bond, it must be submitted on SF 24. The SF 24 can be found at the GSA Forms Library at <https://www.gsa.gov/forms>.

2.2 INSURANCE. Contractor shall carry Liability and Insurance. See FAR 52.228-5, Insurance – Liability to Third Persons.

2.3 The successful Offeror will, within the time established in the proposal, furnish performance and payment bonds in the amounts indicated in the RFP or the specifications.

a. PERFORMANCE BONDS (Standard Form (SF) 25). Pursuant to FAR 52.228-15, Performance and Payment Bonds—Construction (DEVIATION 2020-O0016), the penal amount of the performance bond shall equal one hundred percent (100%) of the contract price. Bonds shall be received on a SF 25A within ten (10) calendar days after receipt of contract award. The SF 25A can be found at the GSA Forms Library at <https://www.gsa.gov/forms>.

b. PAYMENT BONDS (SF 25A). Pursuant to FAR 52.228-15, Performance and Payment Bonds—Construction (DEVIATION 2020-O0016), the penal amount of the payment bond shall equal one hundred percent (100%) of the contract price. Bonds shall be received on a SF 25A within ten (10) calendar days after receipt of contract award. The SF 25A can be found at the GSA Forms Library at <https://www.gsa.gov/forms>.

3.0 SYSTEM FOR AWARD MANAGEMENT (SAM)

In accordance with FAR 52.204-7, System for Award Management, registration is required in the System for Award Management (SAM) database located at www.sam.gov. More specifically, "An Offeror is required to be registered in SAM when submitting an offer or quotation and at time of award (see FAR clause 52.204-13, System for Award Management Maintenance, for the requirement to maintain SAM registration during performance and through final payment)." (See FAR 52.204-7(b)(1)).

For SAM Customer Service, contact:

Federal Service Desk
Website: www.fsd.gov
Hours: 8am – 8pm (Eastern Time)
U.S. Calls: 866-606-8220 International Calls: 334-206-7828
DSN: 866-606-8220

Vendors can check whether an account is active by performing a query by their CAGE or Unique Entity Identifier.

The registration process may now take several weeks, so vendors are highly encouraged to begin registering as soon as possible to avoid any possible delays in future contract awards. Remember, there is no cost to use SAM.

To find out additional information about the changes of the SAM registration process, contractors should visit the Frequently Asked Questions (FAQ) link located at the top of the SAM homepage (www.sam.gov).

4.0 SMALL BUSINESS PARTICIPATION PLAN (SBPP)

All Offerors (both large and small businesses) are required to complete a Small Business Participation Plan (SBPP) in accordance with DFARS 215.304. Reference section 00 21 00 of this solicitation for additional submission requirements.

5.0 SMALL BUSINESS SUBCONTRACTING PLAN

The successful Offeror (if a large business) shall provide a Small Business Subcontracting Plan (SBSP) that contains all of the elements required by FAR 52.219-9 and DFARS 252.219-7003. The SBSP is not a requirement for evaluation in source selection but shall be provided upon request before contract award (if the successful Offeror is a large business). The approved SBSP will be incorporated into the contract and be monitored periodically to ensure compliance. The awarded Contractor will be required to submit small business participation reports bi-annually, which will be reviewed by the District's Small Business Professional and/or the Procuring Contracting Officer (PCO) and acknowledged by the PCO.

6.0 WHERE TO SUBMIT & SUBMITTAL DEADLINE

Offerors shall submit their proposals no later than the time and date specified in Block 13 of SF 1442 of this solicitation as follows:

The Offeror's proposal shall be submitted electronically, via Procurement Integrated Enterprise Environment (PIEE), as described below. The RFP will provide proposal submission instructions and receipt date for proposal submittal. The Offeror's proposal shall not contain classified data. The use of hyperlinks in proposals is prohibited.

The Offeror's proposal must be received by the Government by the date/time specified in the solicitation.

6.1 PROPOSAL SUBMISSION: ALL SUBMISSIONS TO THIS RFP SHALL BE SUBMITTED ELECTRONICALLY THROUGH PIEE. No paper copies, CD-ROMs or facsimile submissions will be accepted. Electronic Proposal Submissions is required through the Army's Electronic File Sharing Service in PIEE (<https://piee.eb.mil/>). The PIEE Application is used to send large files to individuals that would normally be too large to send via email. Information regarding how to set up a vendor registration is included in this link: <https://piectraining.eb.mil/wbt/xhtml/wbt/portal/overview/vendorRegister.xhtml>. On this page, click on the "Vendor User Registration" Doc and it will take you through the process of registering as a vendor.

If you plan on submitting a proposal, be sure to select "SOL-Solicitation" in the drop-down list and choose the "Proposal Manager" role to be given the proper permissions.

Further training is available at the following links:

<https://piectraining.eb.mil/wbt/xhtml/wbt/sol/index.xhtml> - This link shows information regarding the solicitation application in PIEE and the different roles available.

<https://piectraining.eb.mil/wbt/xhtml/wbt/sol/solicitation/proposals.xhtml> - This link is for Offerors regarding the Proposal Manager function and instruction on submitting a Proposal.

a. File Size Limitations: Offerors are advised to follow the PIEE instructions for uploading files. PIEE supports delivery of up to 1.9GB per file, with no limit on the number of files, as well as multiple file formats. If needed, Offerors are advised to break the files down into smaller sections in order to upload them into the system. In such cases, please divide the sections as logically as possible and be sure to clearly name the files as specified below.

b. File Naming Convention: To ensure your submission is received and processed appropriately, it is important that interested parties CAREFULLY ensure their electronic files adhere to the following naming convention:

- W912P525RA001– (FIRM NAME) – VOLUME I
- W912P525RA001– (FIRM NAME) – VOLUME II

Each file name shall begin with the solicitation number followed by the firm's name, and a brief file description. Please see the examples above.

c. File Organization: Although hard copies are not accepted, each file shall be clearly indexed, and logically assembled. Font size shall be the size listed in the submission requirements for each factor. Pages shall be letter sized (larger page sizes (such as 11x17 fold- outs, etc.) will be counted as two pages. Proposals shall be in a narrative format, organized and titled so that each section of the proposal follows the order and format of the factors. Information presented should be organized so as to pertain to only the evaluation factor in the section that the information is presented. Information pertaining to more than one evaluation factor should be repeated in each section for each factor.

d. Upload Completion & Deadline: Interested parties shall submit responses no later than the date specified on the solicitation document. The time and date of proposal receipt will be the upload completion/delivery time and date recorded within the PIEE site. Do not assume that electronic submission will occur instantaneously. Large files (e.g. 10MB or more) will take some time to upload. Offerors should time their upload effort with prudence by not waiting until the last few minutes—this will allow for unexpected delays in the transmittal process. Offerors are encouraged to keep a copy of the upload confirmation for their record. Submissions after the deadline will be considered late and will be processed in accordance with FAR 15.208.

e. Electronic Files: Files shall be in their native format (i.e. doc, xls, ppt, etc.), or if in pdf format, shall be in searchable text. Text and graphics portfolios of the electronic copies shall be in a format readable by Microsoft Office or Adobe applications. Data submitted in a spreadsheet format shall be readable by MS Excel (all cells and formulas should be unlocked).

Any information, presented in a proposal that the Offeror wants safeguarded from disclosure to other parties must be identified and labeled in accordance with the requirements of FAR Provision 52.215-1, Instructions to Offerors – Competitive Acquisition (Alternate I), subparagraph (e), which is incorporated by reference in the RFP. The Government will endeavor to honor the restrictions against release requested by Offerors, to the extent permitted under United States law and regulations.

SECTION 00 21 00

PROCEDURES FOR SUBMITTAL OF OFFERS AND PROPOSAL EVALUATION APPROACH

1.0 Submittal of Offers

1.1 Offerors submitting proposals for this project must include information sufficiently detailed to clearly describe the Offeror's past performance, technical approach, safety management, and small business participation plan necessary for successful completion of the project. The requirements stated in this RFP are minimums.

1.2 Offerors shall submit their proposals to the Government no later than the time and date specified in Block 13 of Standard Form 1442 of this solicitation. Detailed submission instructions are listed above in section Instructions to Offerors, paragraph 6.0 Where to Submit and Submittal Deadline and subparagraph 6.1 Proposal Submission.

1.3 Offerors are required to submit a proposal made up of Past Performance, Technical Approach, Safety Management, Small Business Participation Plan, Price, and Pro Forma. All proposal materials shall be submitted via Procurement Integrated Enterprise Environment (PIEE) with a bookmarked table of contents and/or a standard electronic Tab Index. The sections should parallel the submission requirements identified below. Volume I shall be submitted in Portable Document Format (PDF) and shall be either tabbed or bookmarked to reflect the division of Factors in accordance with paragraph 3. Volume II shall be submitted as a separate PDF file and shall also be tabbed or bookmarked.

2.0 Proposal Evaluation Process

2.1 A Source Selection Evaluation Board (SSEB) comprised of representatives of United States Army Corps of Engineers (USACE) will evaluate the proposals. Offerors are advised that the technical evaluation and rating of proposals will be conducted in strict confidence. Technical proposals will be reviewed and rated without knowledge of the price offered. The number and identities of Offerors are not revealed to anyone who is not involved in the evaluation and award process or to other Offerors. Proposals will be evaluated based on the factors described herein, and the basis of award is the Best Value Tradeoff (BVTO) Process.

2.2 The evaluation process essentially consists of three (3) parts: (1) proposal compliance review; (2) past performance, technical, and price evaluations; and (3) best value decision.

2.2.1 Proposal Compliance Review: This is an initial review to ensure that all required forms and certifications (if applicable) are complete and that a past performance, technical, and price proposal were received.

2.2.2 Past Performance and Technical Evaluations: The SSEB will evaluate and rate the proposals against the RFP requirements. Factors will be rated using an adjectival-based system. Past Performance will be rated based on recency/relevancy and confidence.

2.2.3 Price Evaluation: The Government will evaluate price proposals independent of the technical evaluation. The SSEB will not have access to price information until completion of the technical evaluation.

2.2.4 Best Value Decision: After all of the above evaluations are complete, the SSA performs this assessment by comparing the strengths, weaknesses, and the cost/price of the competing proposals to determine which proposal represents the best value to the Government.

3.0 Proposal Information and Related Evaluation Factors

3.1 Proposals will be evaluated in accordance with the factors listed below in relative order of importance.

Non-cost/price factors (Factors I-IV), when combined, are **approximately equal** to cost or price.

Offerors are reminded to include their best past performance, technical and price terms in their initial offer. In accordance with DFARS 215.306(c)(1), the Contracting Officer should conduct discussions for acquisitions with an estimated value of \$100 million or more. Should discussions take place, the Contracting Officer will establish a common cut-off date for when the Final Proposal Revisions are due.

3.2 Volume I – Technical Proposal

3.2.1 Volume I – Factor I – Past Performance	1 st
3.2.2 Volume I – Factor II – Technical Approach	2 nd
3.2.3 Volume I – Factor III – Safety Management	3 rd
3.2.4 Volume I – Factor IV – Small Business Participation Plan	4 th

3.3 Volume II – Price and Pro Forma Information

Tab A – Proposal Data Sheet	Not Rated
Tab B – Standard Form (SF) 1442, and Acknowledged Amendments (if any)	Not Rated
Tab C – Joint Venture (JV) Agreement (if applicable)	Not Rated
Tab D – Section 00 10 00 – Price Proposal	Not Rated
Tab E – Section 00 45 00 – Representation and Certifications (unless available on www.SAM.gov)	Not Rated
Tab F – Proof of Financial Capability	Not Rated

Note: Offeror is responsible for ensuring the documents submitted are consistent throughout the proposal.

3.4 Ratings

Evaluators will apply the adjectival rating for the definition that most closely matches the evaluation.

Past Performance Relevancy Ratings	
Rating	Description
Very Relevant	Present/past performance effort involved essentially the same scope and magnitude of effort and complexities this solicitation requires.
Relevant	Present/past performance effort involved similar scope and magnitude of effort and complexities this solicitation requires.
Somewhat Relevant	Present/past performance effort involved some of the scope and magnitude of effort and complexities this solicitation requires.
Not Relevant	Present/past performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires.

Past Performance Confidence Assessments	
Rating	Description
Substantial Confidence	Based on the Offeror's recent/relevant performance record, the Government has a high expectation that the Offeror will successfully perform the required effort.

Satisfactory Confidence	Based on the Offeror's recent/relevant performance record, the Government has a reasonable expectation that the Offeror will successfully perform the required effort.
Neutral Confidence	No recent/relevant performance record is available, or the Offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The Offeror may not be evaluated favorably or unfavorably on the factor of past performance.
Limited Confidence	Based on the Offeror's recent/relevant performance record, the Government has a low expectation that the Offeror will successfully perform the required effort.
No Confidence	Based on the Offeror's recent/relevant performance record, the Government has no expectation that the Offeror will successfully perform the required effort.

Technical Approach and Safety Management Combined Technical/Risk Ratings	
Adjectival Rating	Description
Outstanding	Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low.
Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.
Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Unacceptable	Proposal does not meet requirements of the solicitation, and thus contains one or more deficiencies and is unawardable, and/or risk of performance is unacceptably high.

The following Definition of Risk chart defines the level of risk listed in the above chart: Combined Technical/Risk Ratings:

Definition of Risk Applied to Combined Technical/Risk Ratings	
Risk Level	Description
Low	Proposal may contain weakness/weaknesses which have little potential to cause disruption of schedule, increased cost, or degradation of performance. Normal contractor effort and normal Government monitoring will likely be able to overcome any difficulties.
Moderate	Proposal contains a significant weakness or combination of weaknesses which may have a moderate potential to cause disruption of schedule, increased cost or degradation of performance. Special contractor emphasis and close Government monitoring will likely be able to overcome difficulties.
High	Proposal contains a significant weakness or combination of weaknesses which is likely to have high potential to cause significant disruption of schedule, increased cost or degradation of performance. Special contractor emphasis and close Government monitoring will unlikely be able to overcome any difficulties.
Unacceptable	Proposal contains a deficiency or a combination of significant weaknesses that causes an unacceptable level of risk of unsuccessful performance.

Small Business Participation Plan Ratings	
Rating	Description

Outstanding	Proposal indicates an exceptional approach and understanding of the small business objective.
Good	Proposal indicates a thorough approach and understanding of the small business objectives.
Acceptable	Proposal indicates an adequate approach and understanding of small business objectives.
Marginal	Proposal has not demonstrated an adequate approach and understanding of the small business objectives.
Unacceptable	Proposal does not meet small business objectives.

3.5 Definitions

a. *Adverse Past Performance* is past performance information that supports a less than satisfactory rating on any evaluation. Adverse past performance that must be addressed with Offerors includes unfavorable comments received from sources such as those received from respondents from past performance questionnaires or interviews that have not been finalized within a formal rating system. A best practice can be to discuss adverse past performance which caused a rating to be lowered to Satisfactory Confidence.

b. *Best Value* means the expected outcome of an acquisition that, in the Government's estimation, provides the greatest overall benefit in response to the requirement. See FAR 2.101.

c. *Clarifications* are limited exchanges between the Government and Offerors that may occur when award without discussions is contemplated. See FAR 15.306(a)(1).

d. *Communications* are exchanges, between the Government and Offerors, after receipt of proposals, leading to establishment of the competitive range. See FAR 15.306(b).

e. *Competitive Range* is all the most highly rated proposals (based on rating of each proposal against all evaluation criteria), unless the range is further reduced for purposes of efficiency. See FAR 15.306(c)

f. *Deficiency* is a material failure of a proposal to meet a Government requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level. See FAR 15.001.

g. *Discussions* are exchanges (i.e., negotiations) in a competitive environment that are undertaken with the intent of allowing the Offeror to revise its proposal. Discussions take place after establishment of the competitive range. See FAR 15.306(d).

h. *Evaluation Notice (EN)* is the Procuring Contracting Officer's (PCO) written notification to the Offeror for purposes of clarifications, communications, or discussions.

i. *Performance Confidence Assessment* is an evaluation of the likelihood (or Government's confidence) that the Offeror will successfully perform the solicitation's requirements; the evaluation is based upon past performance information.

j. *Recency*, as it pertains to past performance information, is a measure of the time that has elapsed since the past performance reference occurred. Recency is generally expressed as a time period during which past performance references are considered relevant.

k. *Relevancy*, as it pertains to past performance information, is a measure of the extent of similarity between the service/support effort, complexity, dollar value, contract type, and subcontract/teaming or other comparable attributes of past performance examples and the solicitation requirements; and a measure of the likelihood that the past performance is an indicator of future performance.

l. *Risk*, as it pertains to source selection, is the potential for unsuccessful contract performance. The

consideration of risk assesses the degree to which an Offeror's proposed approach to achieving the technical factor may involve risk of disruption of schedule, degradation of performance, the need for increased Government oversight, and the likelihood of unsuccessful contract performance.

m. *Significant Strength* is an aspect of an Offeror's proposal with appreciable merit or will exceed specified performance or capability requirements to the considerable advantage of the Government during contract performance.

n. *Significant Weakness* in the proposal is a flaw that appreciably increases the risk of unsuccessful contract performance. See FAR 15.001.

o. *Source Selection Authority (SSA)* is the official designated to make the source selection decision.

p. *Source Selection Advisory Council (SSAC)* is a group of individuals, appointed as needed by the SSA, who provide counsel during the source selection process, prepare the comparative analysis of the SSEB's final evaluation results, and make an award recommendation to the SSA.

q. *Source Selection Decision Document (SSDD)* is the document that reflects the SSA's independent, integrated, comparative assessment and decision.

r. *Source Selection Evaluation Board (SSEB)* is a group of individuals representing the various functional disciplines relevant to the acquisition that is responsible for evaluating proposals against the solicitation criteria.

s. *Strength* is an aspect of an Offerors' proposal that has merit or exceeds specified performance or capability requirements in a way that will be advantageous to the Government during contract performance.

t. *Uncertainty* is any aspect of a non-cost/price factor proposal for which the intent of the Offeror is unclear (e.g. more than one way to interpret the offer or inconsistencies in the proposal indicating that there may have been an error, omission or mistake).

u. *Weakness* means a flaw in the proposal that increases the risk of unsuccessful contract performance. See FAR 15.001.

4.0 Volume I - Factor I (Past Performance) - Performance Assessments

Due to the type of work associated with this project, the Government anticipates the use of key-subcontractors. As a result, if the Prime Contractor (Offeror identified in Block 14 of the SF1442) intends to subcontract for any of the features listed below as similar in scope, the Offeror must submit evidence of a firm commitment (i.e., signed agreement or letter of commitment) from the subcontractor to perform if the Offeror is awarded the contract. The submission requirements and evaluation criteria utilized for the prime contractor will also be utilized by the SSEB for evaluation of these key-subcontractors.

Any key-subcontractors identified in the proposal must be used on the project. No substitutions will be accepted, unless otherwise agreed to by the Contracting Officer.

4.1 Submission Requirements:

The Offeror shall provide descriptions of up to three (3) recent and relevant construction projects. Any additional projects submitted beyond the three (3) project limit will not be evaluated. Each project submitted shall include a completed Past Performance Questionnaire (PPQ) included at the end of this section or Contractor Performance Assessment Reporting System (CPARS) evaluation. Detailed project information shall be provided using the Project Detail Sheet described at the end of this section. Ensure the proposal clearly describes which work the Offeror and the subcontractors performed.

In order to be RECENT, a project must have been completed, or substantially completed (75% or more), within the last fifteen (15) years from the solicitation issue date.

In order to be RELEVANT, each individual submitted project shall be valued greater than \$20 million, and at least one (1) project in the portfolio shall be valued at greater than \$50 million. Each individually submitted project must satisfy at least one (1) of the key scope characteristics listed below, and the collective portfolio of submitted projects must satisfy all three (3) of the key scope characteristics listed below:

- a. Placement of structural or mass concrete from a floating platform.
- b. Foundation construction to include secant pile or other shafts, either on land or in a marine environment.
- c. Slot cutting or other controlled deconstruction/demolition in a marine environment.

Offerors are encouraged to submit individual projects that demonstrate more than one (1) of the above listed key scope features and are also encouraged to submit projects that demonstrate one (1) or more of the below additional consideration characteristics:

- a. Experience deconflicting workspace with other prime contractors and examples of sequencing work to accommodate other contractor's work.
- b. Previous experience with the U.S. Army Corps of Engineers (USACE).

NOTE: Do not submit more than three (3) projects. Any additional projects submitted beyond the three (3) project limit will not be evaluated.

The PPQ is provided for the Offeror or its team members to submit to the client for each project the Offeror includes in its proposal for Factor I, Past Performance. Ensure correct phone numbers and email addresses are provided for the client point of contact. Completed PPQs should be submitted with your proposal. If the Offeror is unable to obtain a completed PPQ from a client for a project before proposal closing date, the Offeror should complete and submit with the proposal the first page of the PPQ, which will provide contract and client information for the respective project(s).

Offerors should follow-up with clients/references to ensure timely submittal of questionnaires. If the Offeror's client requests, questionnaires may be submitted directly to the Government's point of contact, Andrew Roth at email: Andrew.R.Roth@usace.army.mil prior to the proposal closing date. Offerors shall not incorporate by reference into their proposal PPQs previously submitted for other RFPs. If the PPQ is for an ongoing (incomplete) project, the PPQ must be completed after the solicitation issue date. Submission of a PPQ does not preclude the Government from using previously submitted PPQ information in the past performance evaluation. Offerors shall submit CPARS in lieu of a PPQ if applicable.

In addition to the above, the Government is required to use CPARS as a source for past performance, when available. If not available and when necessary, the Government reserves the right to check any or all cited references to verify supplied information and to assess owner and engineer satisfaction in regards to qualifications and past performance. Other sources may include, but are not limited to, inquiries of owner representative(s), Federal Awardee Performance and Integrity Information System (FAPIIS), Electronic Subcontract Reporting System (eSRS), and any other known sources not provided by the Offeror. While the Government may elect to consider data from other sources, the burden of providing detailed, current, accurate and complete past performance information rests with the Offeror. The Government may not choose to contact all of the identified references/points of contact. This assessment is based on the Offeror's record of relevant and recent past performance information that pertains to the requirements outlined in the solicitation.

NOTE: For purposes of evaluating past performance, the Prime Contractor is defined as the contractor identified in Block 14 of the Standard Form 1442. If more than one (1) contractor is listed in Block 14, then a signed Joint Venture Agreement must be submitted with the proposal and the Joint Venture (JV) shall be registered as such in the System for Award Management (SAM). However, each party of the JV must submit their own Unique Entity Identifier (UEI SAM – issued by SAM.gov) with the JV proposal. The past performance of each JV partner will be evaluated based on each partner's role in cited past work and in the proposed JV role for this project.

NOTE: The Offeror's Past Performance Proposal, shall be 8-1/2" by 11". Charts, tables, drawings, and illustrations should be limited to the electronic PDF equivalent of 11" by 17". Pages should have a one-inch margin on all sides. Text should be 12- point, Times New Roman. (Captions for drawings and tables may be 10-point).

4.2 Evaluation Criteria:

Past performance will first be evaluated to assess the recency and relevancy of submitted projects in accordance with the minimum requirements stated in the proposal submission section. Projects submitted which are less than 75% complete or projects which were completed more than 15 years ago (from issuance of the solicitation), will be rated less relevant.

The past performance submittal may receive additional consideration if:

- a. The submission includes multiple recent and relevant projects up to the stated maximum of three (3).
- b. The submission includes individual projects that satisfy more than one (1) of the three (3) key scope characteristics.
- c. The submission includes individual projects that demonstrate one (1) or both of the additional consideration characteristics. An individual project that meets all three (3) of the basic relevancy characteristics and one (1) or both of the additional consideration characteristics may be considered most relevant.
- d. The collective portfolio of submitted projects demonstrates both of the additional consideration characteristics, experience deconflicting workspace with other prime contractors, and previous experience working with the U.S. Army Corps of Engineers

The Government will assign a confidence rating to each Offeror based on the degree of successful performance of all recent and relevant projects identified in the proposal in response to paragraph 4.1, Past Performance Submission Requirements discussed above.

5.0 Volume I - Factor II (Technical Approach)

The Technical Approach assessment will consider an Offeror's ability to construct and design specific elements of the contract and manage documentation and submittals to efficiently resolve design conflicts. The Offeror shall show their ability to work within project constraints, properly manage engineering and construction efforts while still maintaining an on-time completion date.

5.1 Submission Requirements:

The Offeror shall submit the following information, not to exceed forty (40) pages, describing the overall engineering and construction efforts for the required contract work. This may include a list of work accomplished by in-house engineering teams, previous work accomplished by subcontracted Architecture-Engineering (A-E) firms, or examples of submittal management and scheduling of engineering work.

- a. The Offeror shall submit a **Master Contract Schedule** that captures the scope of the contract and reflects reasonable timing for pre-work submittal, reviews and physical work through the commissioning of the new lock.

The Master Schedule shall consist of a Gantt chart on a single American National Standard Institute (ANSI) D sheet. Font size shall be a minimum of 8 and legible. The proposed schedule shall include all major milestones and must provide a logical, reasonable, and comprehensive plan on how to design, resource, and execute the project through the lock commissioning within that schedule.

The layout of the Master Schedule shall include the following columns on the left side of the Gantt Chart:

- 1) Activity Name
- 2) Activity (Original) Duration
- 3) Total Float

It is the Offeror's responsibility to identify the sequencing of the below listed construction activities. Should the Offeror intend to use a critical path methodology; the critical path shall be clearly indicated alongside the noncritical activities. Clearly identify any constraints on the schedules presented (e.g., labor or material availability, weather, other contractors' demobilization schedules, etc.).

The Master Schedule shall be task oriented, indicating the number of calendar days after Administrative Notice to Proceed that each milestone will be achieved. The proposed project Master Schedule shall reflect the proposed contract duration, and at a minimum, the following construction activities and milestones.

- Contract Award Date (15 August 2025)
 - Administrative Notice to Proceed
- Construction/Procurement of Concrete Batch Plant
 - Commissioning of Concrete Batch Plant
 - Spillway and Gate Removal
 - Full Notice to Proceed
 - Construction of Riverside Nose Pier
- Construction of Riverside Intermediate Piers
- Movement of First Approach Wall Beam from Watts Bar
 - New Lock Operational
 - Old Lock Grouting
 - Thrust Block Excavation
 - Demobilization

b. The Offeror shall submit a **narrative** that describes the intended engineering and construction effort for the following features of work and how they intend to approach the design or submittal work. A description of how to mitigate anticipated risks, such as, sequencing of work, potential structural issues, and how to work in confined or shared areas controlled by other contractors to allow an early start on work for that feature is requested:

- 1.) Thrust block excavation support system and dewatering system (engineering and construction).
The Thrust Block is located adjacent to multiple existing structures that must be taken into consideration and protected throughout all phases of construction. The excavation plan for the construction of the thrust block must include drawings and calculations for an earth retention system including the methods for shoring, sheeting, and dewatering. The Offeror shall describe how they intend to monitor the performance of the thrust block earth retention system as it pertains to the bridge support on Block 15 of existing lock wall, existing embankment dam, and adjacent bridge bent N-7 and N-4. Groundwater fluctuates rapidly in this portion of the project site and presents an additional complexity to the work area the must be addressed.
- 2.) Bay 5 Shear Wall Installation. The removal of the operating deck stringers and spillway bridge in bays 1-4 can only be accomplished following the construction of the bay 5 shear wall and the installation of post-tensioned strand anchors. Access to this portion of the site is constrained by the active work of an existing contractor on the downstream side of the vertical lift gates and the potential for flows from the adjacent spillway gates. A work platform will need to be developed by the contractor to gain access to this work area. Low deflection formwork on the upstream face is to be removed after removal of the bay 5 spillway gate requiring work in a confined space or by divers. The Offeror shall provide a general summary of how this work will be performed.

- 3.) Management of electrical work and limiting outages to either lock. 13.8KV cables across the section of spillway to be demolished provide power for the new lock, old lock, and operations building and surrounding site. The construction of the bay 5 sheer wall will result in the demolition of the conduit bank containing the feeders to the existing lock transformer room. The feeders will need to be spliced and rerouted to the replacement lock transformer room via the crossover gallery in the new lock. The Offeror shall describe their process of transferring power and any provisions for temporary power, how they intend to keep the existing lock operational should an outage of greater than 12 hours occur, and how to mitigate risk of splicing cables that are greater than 30 years old in a confined space.
- 4.) Slot cutting sequencing and methods. Alkali Aggregate Reaction or AAR at Chickamauga Dam has over the years caused the concrete to expand. This expansion has caused structural deformations and damage in the powerhouse and spillway structures and slot cutting is necessary to isolate the old lock chamber monoliths from the axis of the dam. Slot cuts of 8" are larger than typically made and will result in a visible gap to allow for future expansion. Inspection shafts will need to be constructed as well in a confined space and wet environment. The Offeror shall describe their process for completing this work and how they will also prevent damage to the waterproof liner during their work. Maintaining an approved dam surface throughout the work will require a detailed and proper sequencing and coordination with the Government.

c. The narrative shall also describe your Project Management Plan regarding your use of Government Furnished Property, to include your property management plans, methods, practices, or procedures for accounting for property consistent with the requirements of the solicitation.

d. The Offeror shall submit an organizational chart that clearly shows home office support, on-site management and the responsible chain of command, as well as the proposed quality control group(s). Lines of operational and supervisory control must be clearly delineated. Quality Control, Engineering management, and Safety management shall be included in the chart.

NOTE: The Offeror's entire Technical Approach Proposal (Factor II) shall be limited to no more than the electronic PDF equivalent of **forty (40) printed pages**, 8-1/2" by 11," double sided. Drawings, charts, tables, and illustrations should be limited to the electronic PDF equivalent of 11" by 17" and shall be counted toward the thirty (30) page limit. Pages should have a one-inch margin on all sides. Text should be 12-point, Times New Roman. (Captions for tables may be 10-point.) Pages exceeding the page limit will be removed and not evaluated.

5.2 Evaluation Criteria:

The Master Contract Schedule must show durations for all activities in accordance with the Offeror's expected means and methods and demonstrate logical sequencing and flow of the overall work in accordance with site spatial constraints, as well as demonstrate the ability to be able to fully complete the required submittals prior to starting construction. Minimizing the number of critical path activities while maintaining a high degree of detail and realism for the activity sequencing and durations shall be considered a strength of the proposal.

The narrative must describe the intended engineering and construction sequencing/processes and scheduling risks identified, must clearly demonstrate the Offeror's means and methods to execute the work, and will be evaluated based on the Offeror's logical understanding of the construction processes necessary to complete the contract requirements, work season restrictions, and scope of work. The narrative must also describe feasible mitigation actions for the identified schedule risks that would accompany the Offeror's intended processes. A risk mitigation measure that would be successfully implemented with minimal to no additional time to the performance period shall be considered a strength. The Offeror's narrative discussing their Project Management Plan will also be evaluated on its consideration and inspection of Government Furnished Property and the remediation plan for Government Furnished Property that is no longer serviceable and/or suitable.

The organizational chart must clearly show the lines of operational and supervisory controls including Quality Control, Engineering management, and Safety management.

Constraints: Offeror must demonstrate the capability and flexibility to plan and schedule the complete project to meet the proposed contract completion period. Clearly identify any constraints on the schedules presented (e.g.,

labor or material availability, weather, etc.).

6.0 Volume I - Factor III (Safety Management)

6.1 Submission Requirements:

The Offeror shall submit a narrative not to exceed fifteen (15) pages that considers the hazards associated with the following activities and how they would mitigate associated hazard risks:

- a. Working in confined spaces on an elevated platform. Specific feature of work where applicable is the work on the dam spillways for construction of the bay 5 shear wall and removal of the spillway.
- b. Stabilization of critical infrastructure and preventing impact to other structures during excavation, specifically bridge piers for the Hwy 153 bridge both between the thrust block and closure plug as well as the pier directly north of the thrust block.
- c. Performing critical lifts, specifically the removal of concrete from an elevated location when removing large sections of the spillway and how they can be accomplished while also maintaining safe working loads with barge capacity.

Additionally, the Offeror shall provide their current Experience Modifier Rate (EMR).

NOTE: Safety Management Plan Proposal shall be limited to no more than the electronic PDF equivalent of fifteen (15) printed pages, 8-1/2" by 11", printed double sided. Charts, tables, and illustrations should be limited to 11" by 17" and shall be counted toward the fifteen (15) page limit. Pages should have a one-inch margin on all sides. Text should be 12- point, Times New Roman. (Captions for tables may be 10-point.) Pages exceeding the page limit will be removed and not evaluated.

6.2 Evaluation Criteria:

Narratives will be evaluated based on level of detail, logic, and soundness of the strategy to mitigate each risk factor. Failure to address any of the hazardous activities will result in an "Unacceptable" rating. The proposal will be assessed based on the level to which each hazard is reasonably mitigated or removed. A mitigation that would be successfully implemented with minimal to no additional time to the performance period may be given additional consideration.

The Offeror's proposal must include their EMR. In order for the EMR to be considered a strength the Offeror must have a current EMR of < (less than) 1.0. An EMR of greater than 1.0 will be considered a weakness. An EMR equal to 1 will be considered average (not a strength or a weakness).

7.0 Volume I - Factor IV (Small Business Participation Plan)

7.1 Submission Requirements:

All Offerors (**both large and small businesses**) are required to complete a Small Business Participation Proposal (SBPP). Offerors shall propose the level of participation of small businesses (as a small business prime, joint venture, teaming arrangement, and/or small business subcontractors) in the performance of the acquisition relative to the objectives/goals set forth in the evaluation of this area.

- a. Check the applicable size and categories for the PRIME Offeror only – check all applicable boxes::

() Large Prime

or

() Small Business Prime; also categorized as a

- () Small Disadvantaged Business (SDB)
- () Woman-Owned Small Business (WOSB)
- () Historically Underutilized Zone (HUBZone) Small Business
- () Veteran Owned Small Business (VOSB)
- () Service Disabled Veteran Owned Small Business (SDVOSB)

Total participation planned as a Prime: _____%

b. Submit the total combined dollar value and percentage of work to be performed by both large and small businesses (include the percentage of work to be performed both by Prime, joint venture, teaming arrangement, and subcontractors):

Example: If the Prime proposes a price of \$1,000,000 (including all options), and small business(es) will provide \$250,000 in services/supplies as a prime, joint venture, teaming arrangement, or subcontractor, the % planned for small businesses is 25%; and 75% for large business, equaling 100%.

Total Percentage planned for Large Business(es): _____% = \$ _____

Total Percentage planned for Small Businesses(es): _____% = \$ _____

Total Percentage: 100% = \$ _____

c. Please indicate the total percentage and dollar value of participation to be performed by each type of subcategory small business. The percentage of work performed by Small Businesses that qualify in multiple small business categories may be counted in each category:

Example: Victory Prop Mgt (WOSB and SDVOSB) performing 2%; and Williams Group (SDB, HubZ and WOSB) performing 3%. Results equate to: SB 5%; SDB 3%; HubZone 3%; WOSB 5%; SDVOSB 2%; VOSB 2%;. SDVOSBs are also VOSBs automatically; however VOSBs are not automatically SDVOSBs.

	Total Contract Value to be Subcontracted by Percentage	Total Contract Value to be Subcontracted
Small Disadvantaged Business	%	\$
Woman Owned Small Business	%	\$
HUBZone Small Business	%	\$
Veteran Owned Small Business	%	\$
Service Disabled Veteran Owned Small Business	%	\$

d. Identify the Prime Offeror and type of service/supply that the Prime Offeror will provide. Then list each of the intended subcontractors and principal supplies/services to be provided by that subcontractor. Provide the Commercial and Government Entity (CAGE) code for the Prime and each intended subcontractor. Also, provide the anticipated NAICS codes(s) that the Prime Offeror believes best describes the product or services being acquired by its subcontracts with each intended subcontractor. Small business Primes and small business subcontractors that qualify as small businesses in multiple small business categories should be listed in each applicable small business category.

Example: If a Small Business qualifies as a WOSB and a SDVOSB, you can add them to each category below in which they qualify.

	Name of Company (Include CAGE Code)	Anticipated NAICS Code for Each Subcontractor (1)*	Type of Service/Supply
Prime Offeror:			
Large Business:			
Small Business:			
Small Disadvantaged Business			
Woman Owned Small Business			
HUBZone Small Business			
Veteran Owned Small Business			
Service Disabled Veteran Owned SB			

*Notes: (1) Pursuant to Sections 8(d) of the Small Business Act, a business is considered small for Government procurements if it does not exceed the size standard for the NAICS code that the prime contractor believes best describes the product or services being acquired. In other words, the size of the prime's suppliers is determined by the applicable NAICS code of their joint venture, teaming partner, or subcontract, which may or may not be the same NAICS code as the one for your prime contract with the Government.

(e) Describe the extent of commitment to use small businesses (e.g., what types of commitments, if any, are in place for this specific acquisition either – small business prime, written contract, verbal, enforceable, non-enforceable, joint venturing, mentor-protégé, etc.) Provide documentation regarding commitments to small business for this effort. Copies of such agreements should be provided as part of your small business participation plan and will not count against the page limitation for this volume.

(f) Provide any information substantiating the Offeror's track record of utilizing small businesses on past contracts.

(g) Small Business Subcontracting Plan: The successful Offeror (if a large business) shall provide a Small Business Subcontracting Plan (SBSP) that contains all of the elements required by FAR 52.219-9 and DFARS 252.219-7003. The SBSP is not a requirement for evaluation in source selection but shall be provided upon request before contract award (if the successful Offeror is a large business). The approved SBSP will be incorporated into the contract and be monitored periodically to ensure compliance. The awarded Contractor will be required to submit small business participation reports bi-annually, which will be reviewed by the District's Small Business Professional.

(h) Small Business Participation Plan Proposal shall be limited to no more than the electronic PDF equivalent of twenty-five (25) printed pages, 8-1/2" by 11", printed double sided. Charts, tables, and illustrations should be limited to 11" by 17" and shall be counted toward the twenty-five (25) page limit. Pages should have a one-inch margin on all sides. Text should be 12- point, Times New Roman. (Captions for tables may be 10-point.) Pages exceeding the page limit will be removed and not evaluated. Documentation regarding commitments to small business (copies of agreements) will not count against the limitation.

7.2 Evaluation Criteria:

The Small Business Participation Proposal will be evaluated on the Offeror's best efforts, the level of small business commitment that is being demonstrated for the proposed acquisition, and the prior level of commitment to utilizing small businesses in performance of prior contracts. The Small Participation Proposal must meet the minimum Total Small Business Participation goal of 15% of the total contract value (through collective small business participation from any type of small business or sub-category small business). Offerors unable to meet the minimum overall small business goal of 15% shall provide an explanation of why this target cannot be met with their proposal.

Pursuant to DFARS PGI 215.304(c)(i)(A), the following elements will be considered in evaluating an offeror's Participation Plan:

- The extent to which such firms, as defined in FAR Part 19, are specifically identified in proposals;
- The extent of commitment to use such firms (enforceable commitments will be weighted more heavily than non-enforceable ones);
- The complexity and variety of the work small firms are to perform;
- The realism of the proposal;
- Past performance of the Offerors in complying with the requirements of the Subcontracting Plan Goals for such firms and monetary targets for participation;
- The extent of participation of such firms in terms of the proposed subcontracted value; and
- The extent to which the Offeror provides detailed explanations/documentation supporting the proposed participation percentages, or lack thereof. The Department of Defense (DoD) has established small business goals to help ensure small business receives a fair proportion of DoD awards.

8.0 Volume II – Price and Pro-forma Information (Submit as a separate file from Volume I)

8.1 Tab A – Proposal Data Sheet (Form Enclosed)

8.1.1 Submission Requirements:

The Offeror shall submit a completed Proposal Data Sheet in the format provided at the end of this section.

8.2 Tab B – SF 1442 and Acknowledged Amendments (if applicable)

8.2.1 Submission Requirements:

The Offeror shall submit the SF1442. If any amendments are issued against this Solicitation, the Offeror shall include its acknowledgement of those Amendments by returning the signed amendments with its proposal and/or filling in Block 14 of the SF1442 and submitting the signed document with its proposal. The SF1442, block numbers 16, 17, and 18 must be completed by an authorized person from the company.

8.3 Tab C – Joint Venture Agreement (if applicable)

8.3.1 Submission Requirements:

If the company is a joint venture (JV), then all members of the JV must sign, including all amendments. Also, the Offeror shall submit a copy of the signed JV agreement.

8.4 Tab D – Section 00 10 00 – Price Proposal

8.4.1 Submission Requirements:

Section 00 10 00 shall be completed for the Price Proposal. The Offeror shall enter a price for each item listed in the proposal price breakout schedule.

8.5. Tab E – Section 00 45 00 – Reps and Certs (Unless available at SAM.gov)

8.5.1 Submission Requirements:

Unless available at SAM.gov, the Offeror shall fill out FAR Provision 52.204-24 Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment and include it with their submission.

8.6 Tab F – Proof of Financial Capability

8.6.1 Submission Requirements:

Financial Capability: Submit proof of financial capability (most recent financial statement covering

assets and liabilities). Include the name, address, point of contact (POC) name, POC email and telephone number of firm's banking institution.

8.7 Evaluation Criteria:

Price proposals will be evaluated by the Government (separate from the SSEB) for fairness, reasonableness, and for material unbalancing through the use of price analysis in accordance with FAR 15.404-1.

The Proposal Data Sheet, the SF1442 and acknowledged amendments, JV Agreements, and Proof of Financial Capability will be used for the initial source selection review and will not be rated.

PROJECT DETAIL SHEET

Firm's Name:

Name of Project/Location:

Contract # (if awarded by USACE or other Federal Agency):

General Scope of Project:

Your Firm's role: _____ Prime _____ JV _____ Subcontractor

Percentage of work completed by Offeror's Personnel: _____ %

Project Cost:

At Award: \$ _____

Final Cost: \$ _____

Reason for Cost Growth:

Award Date: _____

Scheduled Completion: _____ (*% complete as of proposal due date*)

Actual Completion: _____

Reason for Schedule Growth:

Criteria: *Check as many as apply, Section 00 21 00, paragraph 4.1*

_____ a. Placement of structural or mass concrete from a floating platform.

_____ b. Foundation construction to include secant pile or other shafts, either on land or in a marine environment.

_____ c. Slot cutting or other controlled deconstruction/demolition in a marine environment.

Additional Consideration:

_____ a. Experience deconflicting work space with other prime contractors and examples of sequencing work to accommodate other contractors work.

_____ b. Previous experience with the U.S. Army Corps of Engineers (USACE).

_____ c. Projects completed (as a prime) within fifteen (15) years from the solicitation issue date.

_____ d. Single projects that demonstrate more than one (1) of the listed scope features.

Detailed narrative how Scope of Work related to the solicitation:

Extent and Type of Work you subcontracted out:

Owner's Representative Point of Contact (POC) for reference (Name, Company, Telephone Number, and Email Address):

USACE PAST PERFORMANCE QUESTIONNAIRE (Form PPQ-0)

CONTRACT INFORMATION (Contractor to complete Blocks 1-4)

1. Contractor Information

Firm Name:	CAGE Code:
Address:	Unique Entity Identifier:Phone Number:
Email Address:	
Point of Contact:	Contact Phone Number:

2. Work Performed as: Prime Contractor Sub Contractor Joint Venture Other (Explain)

Percent of project work performed:

If subcontractor, who was the prime (Name/Phone #):

3. Contract Information

Contract Number:

Delivery/Task Order Number (if applicable):

Contract Type: Firm Fixed-Price Cost Reimbursement Other (Please specify):

Contract Title:

Contract Location:

Award Date (mm/dd/yy):

Contract Completion Date (mm/dd/yy):

Actual Completion Date (mm/dd/yy):

Explain Differences:

Original Contract Price (Award Amount):

Final Contract Price (*to include all modifications, if applicable*):

Explain Differences:

4. Project Description:

Complexity of Work High Med Routine

How is this project relevant to project of submission? (*Please provide details such as similar equipment, requirements, conditions, etc.*)

CLIENT INFORMATION (Client to complete Blocks 5-8)

5. Client Information

Name:

Title:

Phone Number:

Email Address:

6. Describe the client's role in the project:

7. Date Questionnaire was completed (mm/dd/yy):

8. Client's Signature:

NOTE: USACE REQUESTS THAT THE CLIENT COMPLETES THIS QUESTIONNAIRE AND SUBMITS DIRECTLY BACK TO THE OFFEROR. THE OFFEROR WILL SUBMIT THE COMPLETED

QUESTIONNAIRE TO USACE WITH THEIR PROPOSAL, AND MAY DUPLICATE THIS QUESTIONNAIRE FOR FUTURE SUBMISSION ON USACE SOLICITATIONS. CLIENTS ARE HIGHLY ENCOURAGED TO SUBMIT QUESTIONNAIRES DIRECTLY TO THE OFFEROR. HOWEVER, QUESTIONNAIRES MAY BE SUBMITTED DIRECTLY TO USACE. PLEASE CONTACT THE OFFEROR FOR USACE POC INFORMATION. THE GOVERNMENT RESERVES THE RIGHT TO VERIFY ANY AND ALL INFORMATION ON THIS FORM.

ADJECTIVE RATINGS AND DEFINITIONS TO BE USED TO BEST REFLECT YOUR EVALUATION OF THE CONTRACTOR

<u>RATING</u>	<u>DEFINITION</u>	<u>NOTE</u>
(E) Exceptional	Performance meets contractual requirements and exceeds many to the Government/Owner's benefit. The contractual performance of the element or sub-element being assessed was accomplished with few minor problems for which corrective actions taken by the contractor was highly effective.	An Exceptional rating is appropriate when the Contractor successfully performed multiple significant events that were of benefit to the Government/Owner. A singular benefit, however, could be of such magnitude that it alone constitutes an Exceptional rating. Also, there should have been NO significant weaknesses identified.
(VG) Very Good	Performance meets contractual requirements and exceeds some to the Government's/Owner's benefit. The contractual performance of the element or sub-element being assessed was accomplished with some minor problems for which corrective actions taken by the contractor were effective.	A Very Good rating is appropriate when the Contractor successfully performed a significant event that was a benefit to the Government/Owner. There should have been no significant weaknesses identified.
(S) Satisfactory	Performance meets minimum contractual requirements. The contractual performance of the element or sub-element contains some minor problems for which corrective actions taken by the contractor appear or were satisfactory.	A Satisfactory rating is appropriate when there were only minor problems, or major problems that the contractor recovered from without impact to the contract. There should have been NO significant weaknesses identified. Per DOD policy, a fundamental principle of assigning ratings is that contractors will not be assessed a rating lower than Satisfactory solely for not performing beyond the requirements of the contract.
(M) Marginal	Performance does not meet some contractual requirements. The contractual performance of the element or sub-element being assessed reflects a serious problem for which the contractor has not yet identified corrective actions. The contractor's proposed actions appear only marginally effective or were not fully implemented.	A Marginal is appropriate when a significant event occurred that the contractor had trouble overcoming which impacted the Government/Owner.

(U) Unsatisfactory	Performance does not meet most contractual requirements and recovery is not likely in a timely manner. The contractual performance of the element or sub-element contains serious problem(s) for which the contractor's corrective actions appear or were ineffective.	An Unsatisfactory rating is appropriate when multiple significant events occurred that the contractor had trouble overcoming and which impacted the Government/Owner. A singular problem, however, could be of such serious magnitude that it alone constitutes an unsatisfactory rating.
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TO BE COMPLETED BY CLIENT

**PLEASE CIRCLE THE ADJECTIVE RATING WHICH BEST REFLECTS
YOUR EVALUATION OF THE CONTRACTOR'S PERFORMANCE.**

1. QUALITY:	
a) Quality of technical data/report preparation efforts	E VG S M U N
b) Ability to meet quality standards specified for technical performance	E VG S M U N
c) Timeliness/effectiveness of contract problem resolution without extensive customer guidance	E VG S M U N
d) Adequacy/effectiveness of quality control program and adherence to contract quality assurance requirements (without adverse effect on performance)	E VG S M U N
2. SCHEDULE/TIMELINESS OF PERFORMANCE:	
a) Compliance with contract delivery/completion schedules including any significant intermediate milestones. <i>(If liquidated damages were assessed or the schedule was not met, please address below)</i>	E VG S M U N
b) Rate the contractor's use of available resources to accomplish tasks identified in the contract	E VG S M U N
3. CUSTOMER SATISFACTION:	
a) To what extent were the end users satisfied with the project?	E VG S M U N
b) Contractor was reasonable and cooperative in dealing with your staff (including the ability to successfully resolve disagreements/disputes; responsiveness to administrative reports, businesslike and communication)	E VG S M U N
c) To what extent was the contractor cooperative, businesslike, and concerned with the interests of the customer?	E VG S M U N
d) Overall customer satisfaction	E VG S M U N
4. MANAGEMENT/ PERSONNEL/LABOR	
a) Effectiveness of on-site management, including management of subcontractors, suppliers, materials, and/or labor force?	E VG S M U N
b) Ability to hire, apply, and retain a qualified workforce to this effort	E VG S M U N
c) Government Property Control	E VG S M U N
d) Knowledge/expertise demonstrated by contractor personnel	E VG S M U N
e) Utilization of Small Business concerns	E VG S M U N
f) Ability to simultaneously manage multiple projects with multiple disciplines	E VG S M U N
g) Ability to assimilate and incorporate changes in requirements and/or priority, including planning, execution and response to Government changes	E VG S M U N
h) Effectiveness of overall management (including ability to effectively lead, manage and control the program)	E VG S M U N
5. COST/FINANCIAL MANAGEMENT	
a) Ability to meet the terms and conditions within the contractually agreed price(s)?	E VG S M U N
b) Contractor proposed innovative alternative methods/processes that reduced cost, improved maintainability or other factors that benefited the client	E VG S M U N

c) If this is/was a Government cost type contract, please rate the Contractor's timeliness and accuracy in submitting monthly invoices with appropriate back-up documentation, monthly status reports/budget variance reports, compliance with established budgets and avoidance of significant and/or unexplained variances (under runs or overruns)	E	VG	S	M	U	N
d) Is the Contractor's accounting system adequate for management and tracking of costs? <i>If no, please explain in Remarks section.</i>	Yes			No		
e) If this is/was a Government contract, has/was this contract been partially or completely terminated for default or convenience or are there any pending terminations? <i>Indicate if show cause or cure notices were issued, or any default action in comment section below.</i>	Yes			No		
f) Have there been any indications that the contractor has had any financial problems? <i>If yes, please explain below.</i>	Yes			No		
6. SAFETY/SECURITY						
a) To what extent was the contractor able to maintain an environment of safety, adhere to its approved safety plan, and respond to safety issues? (Includes: following the user's rules, regulations, and requirements regarding housekeeping, safety, correction of noted deficiencies, etc.)	E	VG	S	M	U	N
b) Contractor complied with all security requirements for the project and personnel security requirements.	E	VG	S	M	U	N
7. GENERAL						
a) Ability to successfully respond to emergency and/or surge situations (including notifying COR, PM or Contracting Officer in a timely manner regarding urgent contractual issues).	E	VG	S	M	U	N
b) Compliance with contractual terms/provisions <i>(explain if specific issues)</i>	E	VG	S	M	U	N
c) Would you hire or work with this firm again? <i>(If no, please explain below)</i>	Yes			No		
d) In summary, provide an overall rating for the work performed by this contractor.	E	VG	S	M	U	N

Please provide responses to the questions above (if applicable) and/or additional remarks. Furthermore, please provide a brief narrative addressing specific strengths, weaknesses, deficiencies, or other comments which may assist our office in evaluating performance risk (please attach additional pages if necessary):

OFFEROR'S PROPOSAL DATA SHEET

PROJECT: Chickamauga Lock Replacement Approach Wall and Decommissioning Project

1. IDENTIFICATION OF OFFEROR:

Name of Firm:

Name of Point of Contact/Authorized Negotiator:

Address:

Phone:

Email:

Unique Entity Identifier:

CAGE Code:

2. IDENTIFICATION OF JOINT VENTURE PARTICIPANTS:

Provide any other assigned number that identifies the member firm(s) in the CPARS database. If a separate Unique Entity Identifier has been created for a Joint Venture, it must also be submitted. If the firm is a Joint Venture, list the individual firms and briefly describe the nature of the association. Provide Unique Entity Identifier for each.

Firm 1:

Firm 2:

Firm 3:

Nature of Association: